

2:00 PM

LINE 3

24-CIV-05915

COUNTY OF SAN MATEO VS. JOHN ANTHONY DE LEON, ET AL.

COUNTY OF SAN MATEO
JOHN ANTHONY DE LEON

JESUS PEREDA
MIKHAIL MDINARADZE

PLAINTIFF COUNTY OF SAN MATEO'S MOTION TO COMPEL PLAINTIFF ENCORE TEXTILE SERVICE LLC'S RESPONSES TO FORM INTERROGATORIES, SET ONE AND FOR SANCTIONS

TENTATIVE RULING:

On June 23, 2026, this court heard two discovery motions brought by plaintiff County of San Mateo against defendant Encore Textile Services, Inc. (Encore) and denied both motions. The court noted that there were two motions on calendar for July 14, 2026 and encouraged the parties to informally resolve the dispute and vacate the hearings. The hearings remain on calendar although unlike the previous motions, defendant has failed to file any opposition and there is no reply.

Although the court pointed out in its June 22, 2026 tentative ruling that plaintiff has used the incorrect party title for Encore in its caption referring to it as a plaintiff. Additionally, the court informed plaintiff that it referred to compelling Encore "to respond to Defendant's Special Interrogatories, Set One." These mistakes were not corrected and the caption and first paragraph of the notice for the motion to compel form interrogatories and the request for production of documents, set one makes the same mistake. Once again, the court infers that plaintiff means that it is seeking to compel responses to plaintiff's form interrogatories. Technically, the court cannot order responses to plaintiff's requests since the notice requests an order on defendant's requests.

Additionally in the notice of motion, plaintiff put the date of June 16, 2026 as the hearing date, but the clerk's office changed the hearing date to July 14, 2026. The court file shows a proof of service filed May 15, 2026 of the motion showing service of the motion on defendant on May 15, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on May 15, 2026 proper notice of the June 23, 2026 hearing to Encore. There is no amended proof of service in the court file. Therefore, Encore did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1).) This same mistake was made in the two prior motions and was pointed out to plaintiff in the prior tentative rulings. While defendant may have notice of the motions because of this court's prior tentative ruling, this notice is not the notice that the law requires. Therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 ["court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].)

If the court was to consider the motion on its merits, it would deny the motion. As the court previously pointed out in its prior tentative rulings and the same mistake is made in this motion,

plaintiff misapprehends the law. When the responses are entirely objections, which appears to be the case here, only the attorneys' signature and not a verification is required. (See e.g. *Cal. Prac. Guide Civ. Pro. Before Trial* 8:1364.2 (TRG June 2026 update) [citing Code Civ. Proc., 2023.240, subd. (a), 8:1477, *id.*, § 2031.250 re document demands].) Further, although a separate statement in support of a motion to compel is not required when there are no responses, (Cal. Rules of Court, rule 3.1345(b)(1)), it is required when there are responses and a separate statement was required here. (*Id.*, rule 3.1345(a).) Thus, plaintiff's motion is procedurally deficient. Plaintiff makes no attempt to show that the requests are proper and the objections are improper, which is its burden on a motion to compel.

The court orders Jesus Pareda, the attorney for plaintiff to appear at the hearing and explain why in light of the court's prior tentative ruling for the June 23, 2026 hearing, and his failure to correct the errors identified, he did not take this motion off calendar. Zoom appearances are allowed.

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LINE 4

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PLAINTIFF COUNTY OF SAN MATEO'S MOTION TO COMPEL PLAINTIFF ENCORE TEXTILE SERVICE LLC'S RESPONSES
TO REQUESTS FOR PRODUCTION, SET ONE AND FOR SANCTIONS

TENTATIVE RULING:

See ruling on plaintiff's motion to compel responses to form interrogatories, which tentative is
incorporated by reference as if set forth fully herein.
